

		hourly rate of \$250 per hour to be reasonable, in addition to a \$60 filing fee. (Liu Decl., ¶ 9.) Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days. Moving party to give notice of the court's ruling on all motions.
108	Favero v. California Friends Homes 2025-01520569	Motion for Preference – DENIED WITHOUT PREJUDICE Plaintiff, Emilio Favero, moves for an order granting Plaintiff trial preference and setting trial 120 days from the date of the hearing on this motion, citing Code of Civil Procedure section 36(a). The action has been stayed as to Defendant California Friends Homes dba Rowntree Gardens and its opposition has not been considered. The action remains as to Defendant Park Regency Care, LLC dba Park Regency Care Center. Plaintiff's reply papers were filed late. (CCP § 1005.) While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (CRC, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (Ibid.) In determining whether to receive an untimely filed document, "trial courts must consider the specific contexts in which such motions arise and should employ a flexible rather than rigid or formalistic approach to decisionmaking." (Kapitanski v. Von's Grocery Co. (1983) 146 Cal.App.3d 29, 32-33.) "An attorney's neglect in untimely filing opposing papers must be evaluated in light of the reasonableness of the attorney's conduct. [Citation.]" (Id. at p. 33.) "Also pertinent are the effects of strict enforcement on the rights of the parties and the furtherance of justice. [Citations.]" (Ibid.) Despite the late service and late filing, the Court exercises its discretion to consider the reply papers.

“(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a).)

“An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36.” (Code Civ. Proc., § 36.5.) “The attorney’s declaration can consist entirely of hearsay and conclusions [citation.]” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2025 Update) § 12:247.1.)

“Admissible evidence is still required as to the party’s age (e.g., declarations by party or admissible records showing the party is over 70). The attorney’s declaration is not sufficient for this purpose.” (Id. § 12:247.3.)

“The standard under subdivision (a), . . . , includes no requirement of a doctor’s declaration.” (Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534.) “To the contrary, a motion under subdivision (a) may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citations.]” (Ibid.) “The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that the party’s ‘health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.’ (Italics added.)” (Ibid.)

“Under section 36, subdivision (a), a superior court lacks discretion and ‘shall’ grant preference to a party over 70 years of age upon making a showing, ‘(1) [t]he party has a substantial interest in the action as a whole [, and] [¶]”

(2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.' [Citation.]" (Pabla v. Superior Court of Merced County (2023) 90 Cal.App.5th 599, 602-603.) "The trial court has no power to balance the differing interests of opposing litigants in applying the provision." (Swaithes v. Superior Court (1989) 212 Cal.App.3d 1082, 1085–1086, modified (Aug. 17, 1989), modified (Aug. 23, 1989); Fox v. Superior Court (2018) 21 Cal.App.5th 529, 535 ["Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. No weighing of interests is involved."].) "The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations." (Ibid.)

Here, there is no dispute that Plaintiff has a substantial interest in this action. (See Declaration of Lukas I. Pick ("Pick Decl."), ¶ 4.)

The moving papers provide insufficient evidence as to Plaintiff's age. Plaintiff's counsel provides that Plaintiff was born on July 31, 1952, and that Plaintiff is currently 73 years old. (Pick Decl., ¶ 2.) Counsel's declaration is insufficient to establish that Plaintiff is over 70 years of age. However, the Supplemental Declaration of Casey M. Moore attaches a copy of Plaintiff's identification card reflecting Plaintiff's date of birth as Exhibit "A". (Supp. Decl. of Casey M. Moore, ¶ 3, Ex. A.) Footnote 1 of the moving memorandum of points and authorities indicates that the identification card is attached as Exhibit "A," but it was omitted. The Court finds the supplemental declaration sufficient to establish Plaintiff is over 70 years of age.

At issue, however, is whether Plaintiff has shown that his health is such that preference is necessary to prevent prejudicing Plaintiff's interest in this action.

The declaration of Plaintiff's counsel provides that Plaintiff has severe medical conditions including "lumbar post laminectomy syndrome, spinal stenosis, chronic pain disorder, and pressure ulcer on his

sacrum.” (Pick Decl., ¶ 2.) Plaintiff’s counsel also states, “[d]ue to the pressure ulcer on his sacrum, his mobility has decreased, and his health has continued to deteriorate.” (Ibid.) Plaintiff’s counsel additionally provides upon “information and belief” after meeting Plaintiff and examining Plaintiff’s medical records from St. Jude Hospital, that Plaintiff will not survive to be alive for trial if this case is not granted preference. (Id., ¶ 3.) Plaintiff’s counsel states, “Plaintiff’s overall health condition has deteriorated since his severe pressure wound on his sacrum and decreased mobility while at the facility, in addition to chronic pain disorder and spinal stenosis, and his health will continue to deteriorate. The medical statistics evidence that plaintiff’s life expectancy will be drastically reduced as a result of the decreased mobility.” (Ibid.)

The prejudice asserted by Plaintiff’s counsel is that Plaintiff’s health is such that Plaintiff may die before trial if not given preference. However, Plaintiff’s counsel statements are insufficient to support that Plaintiff’s medical conditions including “lumbar post laminectomy syndrome, spinal stenosis, chronic pain disorder, and pressure ulcer on his sacrum” are such that Plaintiff’s health is rapidly deteriorating towards death, i.e., the asserted prejudice. In addition, Plaintiff’s counsel’s declaration does not contain sufficient information about Plaintiff’s medical conditions and diagnosis and the manner in which these conditions and/or diagnosis prejudices Plaintiff’s interest in this litigation if preference is not granted. Based on the foregoing, Plaintiff fails to show that preference is necessary to prevent prejudicing Plaintiff’s interest in the litigation.

Therefore, the motion is denied without prejudice.

Defendant, Park Regency Care, LLC dba Park Regency Care Center to give notice.

Case Management Conference

109	Indigo Sports, LLC v. JP International USA, Inc. 2024-01443215	Demurrer to Amended Cross-Complaint -OVERRULED Cross-Defendant/Plaintiff Indigo Sports, LLC (“Cross-Defendant”) demurs to the all causes of action alleged in the operative First Amended Cross-Complaint (FACC): (1) fraud in the inducement, (2) failure of consideration, (3) economic duress, (4) declaratory relief, (5) money had and received, and (6) conversion. Cross-Complainant/Defendant JP International USA, Inc. (“Cross-Complainant”) opposes the demurrer. “A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) As an initial matter, the Court is not persuaded by Cross-Defendant’s argument that the FACC is a sham pleading. The Court finds that the differences between the two pleadings are inconsequential to the causes of action alleged and that the allegations are not contradictory. 1st CAUSE OF ACTION: FRAUD IN THE INDUCEMENT A. Elements of Fraud in the Inducement In California, the essential elements of a fraud cause of action are “(a) a misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (In re Estate of Young (2008) 160 Cal.App.4th 62, 79.)
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